



independent judicial body (the Supreme Court) as the sole arbiter and interpreter in the scheme of distribution of powers between the Centre and the states—a standard feature in every federal Constitution—was adopted. Next, the Chapter on Fundamental Rights (Part-III) drawn from the Standard Setting Charter of the United Nations ensured to every citizen the right to move freely in any part of India (Article 19(1)(d)) and trade, commerce and intercourse throughout India was declared to be “absolutely free” (Article 301). Finally, to keep the Union from falling apart, the Centre retained with itself, during emergent situations, all residual functions of the Government of a state (Article 356). These were some of the broad features of a new kind of “federalism”, specially designed to meet India’s new needs: the primary one being to preserve unity amidst vast and complex diversity. But federalism has not worked in practice: principally because of the Supreme Court’s fear of a Balkanised, fragmented India. A few examples:

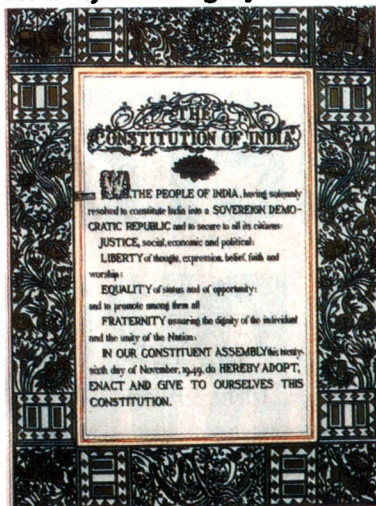
First. Whilst Article 1 of the Constitution did proclaim the federal character of India—“India, that is Bharat, shall be a Union of states”—Article 3 empowered Parliament to diminish the area of any state, alter its boundaries, and change its name: this could be achieved (the Supreme Court had said in 1960) despite the opposition of the state and of its inhabitants. If Parliament, by ordinary law, could abolish a state: could the Union of states ever be described as “federal”? The framers wisely refrained from using this word. The courts also skirted the issue of giving a label to our framework of governance—one of India’s chief justices called it neither unitary nor federal, but “amphibian”.

Second. Whilst there is a clear-cut distribution of legislative and executive powers between the Union and the units comprised in it, the powers of the states have been constrained. States in India (unlike those in the US) have no independent “political sovereignty”: a conclusion affirmed way back in 1963 by a majority of Justices of the Supreme Court in state of West Bengal-versus-Union of India. The great question in that case was whether the Union had constitutional power to acquire properties belonging to a state or whether its power of acquisition was restricted to properties only of non-state entities within a

state. Chief Justice Sinha said: “It would be difficult to hold that Parliament, which is competent to destroy a state, is on account of some assumption as to sovereignty of the state, incompetent effectively to acquire by legislation the property owned by the state for governmental purposes.” Justice Subba Rao dissented. He said that our Constitution adopted a federal structure with a strong bias towards the Centre, and that “under such a structure, while the Centre remains strong to prevent the development of fissiparous tendencies, the states are made practically autonomous in ordinary times within the spheres allotted to them.” But Rao’s dissent was a voice in the judicial wilderness.

Third. Even in “ordinary times”, the Centre has exercised control over states and their chief ministers. In May 1977, the Central government appointed a commission of inquiry (under the Commission of Inquiry Act, 1952) against the chief minister of Karnataka because of a series of serious charges made against him by some opposition members in the legislative assembly. The state of Karnataka promptly moved the Supreme Court, the only court having exclusive jurisdiction in suits

ONE INDIA: The Preamble calls for unity and integrity



With the Union firmly cemented,
the progress of constitutionalism
now lies in New Federalism—more
financial and political rights to
the states than in the past.

between a state and the Union. It was contended that in the elections held in the state in 1972, the Congress had returned to power by a majority, electing Devraj Urs as its leader, who then formed the government; and that this government continued to enjoy the confidence of the state legislature; that in the Lok Sabha elections of March 1977, the Congress in Karnataka headed by the same Urs had secured 26 out of the 28 Parliamentary seats in the state; and that the Janata Party, which was in power at the Centre,